

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

July 9, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website. The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10:00 a.m		
1	Thompson vs. Doan	for Plaintiff John Antyony Thompson ("Client"). For the following reasons, the motion is DENIED without prejudice. This motion was filed on 4/10/26 with a noticed hearing date of 5/7/26. On 5/7/26, this Court continued the hearing on this matter to 6/4/26 for failure to comply with Code of Civil Procedure Section 1013a. Not later

		than (9) court days before the continued hearing, Moving Counsel was ordered to file and serve: (1) proof of service that complies with Code of Civil Procedure section 1013a, establishing service of all moving papers on Client; and (2) an updated proposed order on Judicial Council form MC-053 that updates the upcoming hearing information provided in Section 7. (ROA 86.) In addition, Moving Counsel was ordered to give notice of the 5/7/26 ruling. (Ibid.) While Moving Counsel filed a Proof of Service showing e-service of a Notice of Ruling, no other compliance was attempted. Thus, on 6/4/26, the Court again continued the hearing on this matter to this date for non-compliance with the Code of Civ. Proc. and Rules of Court. (ROA 103.) The record shows no compliance with this Court's 06/04/2026 order. Accordingly, the motion is DENIED. The Case Management Conference is continued to October 08, 2026 at 09:00 am in Department C10. Moving Counsel to give notice of this ruling.
2	Holt vs. JLK, LLC	Counsel Jacob A. Ayres' motion to be relieved as counsel for Defendant Jessica Lea King is GRANTED. The Court's order shall become effective upon the filing of Proofs of Service of the signed order. (Code Civ. Proc. § 284; Cal. Rules of Court, rule 3.1362). The court has reviewed the materials submitted by Moving Counsel and finds that Moving Counsel has complied with the requirements of Rule 3.1362. Moving Counsel shall give notice to all parties and the client of the court's ruling.
1:30 p.m.		
1	Murillo vs. Derambakhsh	Plaintiff Patricia Murillo's motion to tax costs is DENIED. To shift recovery of expert witnesses, a 998 offer must be and have been made in good faith. To be valid, the 998 offer must be sufficiently specific to permit the recipient to evaluate it in a meaningful manner and to make a reasonable decision whether to accept or reject it. (<i>Auburn Woods I Homeowners Ass'n v. State Farm Gen. Ins. Co.</i> (2020) 56 Cal.App.5th 717, 725; <i>Anthony v. Li</i> (2020) 47 Cal.App.5th 816, 821. <i>See also</i> Cal. Judges Benchbook Civ. Proc. Before Trial § 5.30.) In addition, to effectuate the purpose of encouraging settlements, courts have created a nonstatutory "good faith" exception for awarding costs to

a prevailing party under Code Civ. Proc. §998 if it appears that the offer, when made, had “no reasonable prospect” of being accepted by a reasonable offeree similarly situated. (*Bates v. Presbyterian Intercommunity Hospital* (2012) 204 Cal. App. 4th 210, 220; *Burch v. CHOC Thrift Stores, Inc.* (2003) 109 Cal. App. 4th 537, 548.) Good faith in turn requires that the settlement offer be realistically reasonable under the circumstances of the particular case and carry with it some reasonable prospect of acceptance. A party having no reasonable belief that his offer might be accepted will not be allowed to benefit from a no-risk offer made for the sole purpose of later recovering large expert witness fees. (*Adams v. Ford Motor Co.* (2011) 199 Cal. App. 4th 1475, 1483-85.) The burden rests with the offeree to show that the offer was made in bad faith and for an improper purpose. (*Jones v. Dumrichob* (1998) 63 Cal. App. 4th 1258, 1262.)

Courts have determined that a defendant's Section 998 offer was merely a “token” or “bad faith” offer; i.e., one for which there was no reasonable prospect of acceptance – so cost shifting under Section 998 was not triggered. (See *Wear v. Calderon* (1981) 121 Cal. App. 3d 818, 821; *Pineda v. Los Angeles Turf Club, Inc.* (1980) 112 Cal. App. 3d 53, 62–63.)

Generally, “reasonableness . . . is measured, first, by determining whether the offer represents a reasonable prediction of the amount of money, if any, (the offeror) would have to pay (the offeree) following a trial, discounted by an appropriate factor for receipt of money by (the offeree) before trial . . .” (*Elrod v. Oregon Cummins Diesel, Inc.* (1987) 195 Cal. App. 3d 692, 699.) The good faith of a defendant’s 998 offer cannot be measured by the plaintiff’s subjective belief in the value of her case. (*Essex Ins. Co. v. Heck* (2010) 186 Cal. App. 4th 1513, 1530.) The following factors are considered: the ultimate jury verdict, defendant’s apparent liability, plaintiff’s damages, insurance coverage, jury reports, and information available to the plaintiff. (*Elrod*, supra, at 698-700.)

But the “offer[s] should be evaluated not only in comparison to the amount of damages plaintiffs sought, but in light of their likelihood to prevail.” (*Melendrez v. Ameron Internat. Corp.* (2015) 240 Cal.App.4th 632, 649.) In analyzing the good faith of an offer, “courts should evaluate the totality of the facts,” but “three factors are especially pertinent: (1) how far into the litigation the 998 offer was made; (2) the information available to the offeree prior to the 998 offer’s expiration; and (3) whether the offeree let the offeror know it lacked sufficient information to evaluate the offer, and how the offeror responded.” (*Licudine v. Cedars-Sinai Medical Center* (2019) 30 Cal.App.5th 918, 921 (“*Licudine*”).)

First, the fact that defendants obtained a more favorable judgment than the 998 offers is prima facie evidence of the reasonableness of the offer.

(*Smalley v. Subaru of America, Inc.* (2022) 87 Cal.App.5th 450, 458 (*Smalley*)). In fact, in this case, Plaintiff received nothing from Defendant. Thus, Defendant's Section 998 offer for a waiver of costs and a waiver of a malicious prosecution cause of action is prima facie evidence of the reasonableness of the offer.

Further, cost-waiver-only Section 998 offers in the medical malpractice context carry legal cognizable value and can trigger the statute's cost-shifting consequences. As the Court of Appeal noted in *Essex Insurance Company v. Heck* (2010) 186 Cal.App.4th 1513, medical malpractice cases often involve significant costs for medical experts, making a waiver of such costs a valuable consideration to the offeree. (*Essex Ins. Co. v. Heck*, supra, 186 Cal.App.4th at 1529.)

On 3/21/25, Defendant served on Plaintiff a Section 998 offer that consisted of a waiver of costs and a waiver of a cause of action for malicious prosecution in exchange for a dismissal. Plaintiff did not accept Defendant's offer. Plaintiff failed to obtain a more favorable result at trial. As a result, Defendant seeks costs associated with defending this matter, including expert fees incurred after the Section 998 offer was made. Plaintiff moves to strike Defendant's expert fees from the Memo. of Costs.

Here, Plaintiff has failed to meet this burden. Plaintiff contends the Section 998 offer was unreasonable because Plaintiff's claim had substantial merit and Defendant had no expectation it would be accepted and was a ploy to enhance costs. Plaintiff asserts that the jury found Defendant negligent and Defendant's own expert testified to a worsening of Plaintiff's condition. In addition, Plaintiff's experts testified that Defendant's negligence caused harm.

But, this discussion fails to demonstrate or explain how Defendant's Section 998 offers may have been made in bad faith or unreasonable in light of the information available to plaintiffs at the time. (See *Licudine* at p. 921.) Plaintiff fails to present any meaningful discussion on the ultimate jury verdict (which was in Defendant's favor), Defendant's apparent liability (including causation, or in this case, the lack thereof), Plaintiff's damages, insurance coverage, jury reports, how far into the litigation the offer was made, information available to Plaintiff at the time the offer was made, or whether Plaintiff let Defendant know she lacked sufficient information to evaluate the offer and how Defendant responded. (See, *Licudine* at 912; *Elrod v. Oregon Cummins Diesel, Inc.*, supra, 195 Cal.App.3d at 698-700.)

Additionally, Defendant provides sufficient facts to show the Section 998 offer for a waiver of costs and waiver of a malicious prosecution claim was in good faith. The Section 998 offer was served on 3/21/25, twenty months after Plaintiff's complaint was filed. Prior to the Section 998 offer, on 2/20/25, Defendant filed and served a motion for summary

		judgment that was supported by an expert declaration showing Defendant's treatment of Plaintiff was within the standard of care and Defendant did not cause or contribute to Plaintiff's harm. Defendant further states that the expert fees challenged by Plaintiff were incurred after the Section 998 was made. Additionally, believing in the merits of the claims a plaintiff chooses to pursue against a defendant and declining to accept a defendant's Section 998 offer carries a cost shifting risk inherent in declining said offer. "Notwithstanding plaintiffs' perception of their likelihood to prevail, '[w]hen a defendant perceives himself to be fault free and has concluded that he has a very significant likelihood of prevailing at trial, it is consistent with the legislative purpose of section 998 for the defendant to make a modest settlement offer. If the offer is refused, it is also consistent with the legislative intent for the defendant to engage the services of experts to assist him in establishing that he is not liable to the plaintiff. It is also consistent with the legislative purpose under such circumstances to require the plaintiff to reimburse the defendant for the costs thus incurred.' [Citation.]" (<i>Melendrez v. Ameron Internat. Corp.</i>, supra, 240 Cal.App.4th at p. 650.) Because Plaintiff has not met her burden to show Defendant's Section 998 offer was made in bad faith and for an improper purpose, the motion to tax costs is DENIED. Defendant to give notice.
2	Yegenian vs. Takegami	The Demurrer to the Complaint brought by Defendant Mano Takegami is OVERRULED, as to the First and Second Causes of Action and, SUSTAINED, as to the Third Cause of Action, with 15 days leave to amend. Initially, the Court notes that Defendant failed to comply with Code of Civil Procedure section 430.41, as the same requires efforts to meet and confer "in person, by telephone, or by video conference," as well as a declaration which attests to compliance. (Code Civ. Proc., § 430.41, subd. (a)). While the Court exercises its discretion to proceed on the merits, Counsel R. Casey Hull is advised that failure to comply with this provision in the future may result in the demurrer being taken off calendar, until compliance is shown. With respect to the First Cause of Action for Breach of Contract, Defendant asserts "Plaintiffs do not identify any specific provision of the Residential Purchase Agreement ('RPA') that Defendant TAKEGAMI allegedly breached." (Demurrer: 3:15-17.) To support her assertion express identification of the relevant contractual provision is required, Defendant cites <i>Otworth v. Southern Pac. Transportation Co.</i> (1985) 166 Cal.App.3d 452, wherein the complaint had "set[] forth none of the alleged contract's terms..." (<i>Id.</i> at p. 459.) In

contrast to the circumstances in *Otworth*, the relevant Agreement is attached as Exhibit A to the Complaint. (See ¶10 of Complaint and Exhibit A thereto.)

“Written documents attached to the complaint are incorporated into it and may be considered on demurrer.” (*Dawadi v. Adhikari* (2026) 120 Cal.App.5th 558, 562.)

Included within the Residential Purchase Agreement are ¶11(A)(3) and ¶11(A)(4), which required Defendant to provide “Supplemental Disclosures” and to amend the same, in the event Defendant became aware of any adverse conditions or material inaccuracies. (Opposition: 2:20-3:6; See also ¶10 of Complaint and Exhibit A thereto, at ¶11(A).) Given the above provisions, the allegation Defendant failed “to disclose known material facts about the Property’s condition, including termite infestation, dry rot, and drainage and water intrusion,” sufficiently alleges a breach of contract. (¶23 of Complaint; See also ¶12-¶16 of Complaint.)

Finally, as noted by Plaintiffs, to the extent the above contractual obligation mirrors statutory duties, the same does not defeat the contractual nature of the claim. (*300 DeHaro Street Investors v. Department of Housing & Community Development* (2008) 161 Cal.App.4th 1240, 1256.)

Thus, the Demurrer to the First Cause of Action is OVERRULED.

As to the Second Cause of Action for Fraudulent Concealment, Defendant makes multiple assertions, without reference to the elements of concealment and without citing authority. (See Demurrer: 4:11-24.)

“Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (*People v. Stanley* (1995) 10 Cal.4th 764, 793.)

Additionally, the arguments alluded to by Defendant fail.

Defendant asserts a lack of required specificity, as the Complaint fails to allege “how, when, or by what means Defendant personally concealed material facts.” (Demurrer: 4:12-13.)

While the particularity requirement which typically applies to fraud “necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered,’” “it is harder to apply this rule to a case of simple nondisclosure.” (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) “How does one show ‘how’ and ‘by what

means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (*Ibid.*)

Notably, “[l]ess specificity should be required of fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.” (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384 [internal quotations omitted].)

This principle applies herein and this challenge fails.

Next, Defendant asserts the Complaint fails to allege facts “showing active concealment or exclusive knowledge.” (Demurrer: 4:13-14.)

Defendant cites no authority in support of the above argument; however, it appears to be a reference to the circumstances which generally give rise to a duty to disclose. (See *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.)

As noted by Plaintiff, “a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (See *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337.) “All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (*Ibid.*)

Here, as noted above, the Complaint alleges Defendant was under a contractual obligation to disclose the withheld information. (¶23 of Complaint.)

In addition to the above, the Complaint does, in fact, allege *active* concealment. A duty to disclose arises “when the defendant actively conceals a material fact from the plaintiff.” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.) Per the Complaint, Defendant “knew about widespread termite infestation, dry rot, and ongoing drainage and water intrusion” but “intentionally concealed these facts and falsely represented in the SPQ that no such issues existed.” (¶28-¶29 of Complaint.) “Plaintiffs had an inspection performed, however, the damage caused by the termites was concealed with cosmetic repairs, painting over evidence of infestation, and removing visible damage from view.” (¶29 of Complaint; See also ¶34 of Complaint [“Defendants not only failed to disclose them but also misled Plaintiffs when Plaintiffs inquired about these issues by focusing on minor issues, such as stating that the ongoing drainage and water intrusion issues stemmed from an adjacent property...”])

The above allegations sufficiently support the existence of a duty to disclose.

Next, Defendant challenges the sufficiency of Plaintiff's allegations of *justifiable reliance* (Demurrer: 4:14-20); however, "justifiable reliance" is *not* an element of concealment. Instead, the relevant element is that "plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact." (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

This element is properly alleged within ¶34 of the Complaint.

Citing *Kaldenbach v. Mutual Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, Defendant asserts "[m]ere nondisclosure, particularly where inspections occurred, is insufficient to state a concealment claim" (Demurrer: 4:25-28, citing *Kaldenbach v. Mutual Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850). In *Kaldenbach*, the Court of Appeal affirmed denial of class certification, on the basis "there were significant individual issues as to whether there were in fact any misrepresentations, omissions, or nondisclosures made to individual purchasers." (*Id.* at 851.) *Kaldenbach* does not address the underlying sufficiency of the concealment claims and does not support the argument made by Defendant.

Finally, Defendant asserts the claim improperly alleges misconduct collectively, in a way that renders the claim insufficiently specific and unclear. (Demurrer: 5:1-4.) This argument is unpersuasive, in the context of a concealment claim which clearly asserts *all* Defendants failed to disclose material facts. (See ¶28-¶29 of Complaint.)

Based on the above, the Demurrer to the Second Cause of Action is **OVERRULED**.

With respect to the Third Cause of Action, Defendant challenges the allegation of a fiduciary relationship, stating: "A seller in an arm's-length transaction does not owe a fiduciary duty to a buyer." (Demurrer: 5:14-15.) Defendant cites *Hasso v. Hapke* (2014) 227 Cal.App.4th 107, to support the above point, however *Hasso* involved an alleged "investment adviser/client relationship" which the Court explained "is one such relationship, giving rise to a fiduciary duty as a matter of law." (*Id.* at p. 140.) Once again, the authority cited by Defendant offers no support for the argument made.

Despite the above, Plaintiffs "concede that their third cause of action for constructive fraud is mispleaded" and request leave to allege fraudulent misrepresentation. (Opposition: 2:9-14.)

Given Plaintiffs' concession that a fiduciary relationship does not exist (See also Opposition: 7:16-17), this portion of the Demurrer is

		SUSTAINED; however, leave to amend is GRANTED as requested, to permit Plaintiffs to state a claim for fraudulent misrepresentation. The Case Management Conference is continued to October 08, 2026 at 09:00 am in Department C10.
3	Steinhardt vs. Capistrano Unified School District	Defendant Capistrano Unified School District (CUSD)'s motion for summary judgment is GRANTED. <u>Plaintiff's Objections</u> The court OVERRULES objections nos. 1-3 (Decl. of Presby at ¶¶ 4-6 and Exhibits A and B), and nos. 6 and 7 (UMFs 2 and 13). The court DECLINES to rule on objection no. 4 pursuant to Code Civ. Proc. § 437, subd. q ("the court need rule only on those objections to evidence that it deems material to its disposition of the motion"). The court SUSTAINS objection no. 5 (UMF 9) on the basis of speculation and lacks personal knowledge, but only as to "no CUSD official was aware of any concerns about Lutz's behavior." The court overrules any objection to the evidence provided in support of this UMF. <u>Defendant's Objections</u> The court OVERRULES objections nos. 1-24 (Decl. of Friedman), and DECLINES to rule on objections nos. 25-28 (Decl. of Steinhardt) pursuant to Code Civ. Proc. § 437, subd. q. Defendant also objects, to, and moves to strike, Plaintiff's entire additional separate statement of material fact (AUMF) on the basis that it contains 781 facts, many of which are immaterial. The court agrees that some of these facts are unnecessary. The court also finds that Plaintiff would sometimes refer to large groups of AUMFs in the arguments of her Opposition, which made it difficult to ascertain exactly which AUMFs she was relying on. (See Opp., at pg. 13 [referring to facts "Nos. 74-90"]; see also Opp. At pgs. 19 [referring to facts "Nos. 497-606"]). Nevertheless, the court finds that striking Plaintiff's AUMF is a harsh and unnecessary remedy, and OVERRULES Defendant's objections to the AUMF. However, the court admonishes Plaintiff that the separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion. (See Cal. R. Ct., rule 3.1350(d)). <u>Motions for Summary Judgment</u> "Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving

party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (*Aguilar*, *supra*, 25 Cal.4th at 855, italics original.)

In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar*, *supra*, 25 Cal.4th at 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) “In some instances . . . , ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1083-1084, *quoting Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.* (1988) 199 Cal.App.3d 791, 795.) “‘If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.’” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, *quoting Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar*, *supra*, 25 Cal.4th at p. 843, citations omitted.) Courts “‘construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.’” (*Unilab Corp. v. Angeles-IPA* (2016) 244

Cal.App.4th 622, 636, quoting *Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (*Johnson v. United Cerebral Palsy, etc.* (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (*Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392.)

Plaintiff’s Claims

“A summary judgment motion is directed to the issues framed by the pleadings”. (*Canales v. Wells Fargo Bank, N.A.* (2018) 23 Cal.App.5th 1262, 1268). The court looks to the pleadings as “the outer measure of materiality” in a motion for summary judgment. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.)

Plaintiff asserts two causes of action against Defendant Capistrano Unified School District for negligence and negligent hiring, supervision and retention.

Plaintiff Avery Steinhardt alleges that she was a senior at Tesoro High School in Las Flores, California, during the 2022-2023 school year and was 18 years of age in December 2022. She was also a member of the Tesoro High School Girls’ Basketball Team during the 2022-2023 season. (Compl., ¶ 6). Brandon Lutz was a coach of the Tesoro High School Girls’ Basketball Team and an employee of the Capistrano Unified School District. (Compl., ¶ 8). From December 27-30, 2022, the Tesoro High School Girls’ Basketball Team was participating in a basketball tournament. (Compl., ¶ 11). On the morning of December 28, 2022, Brandon picked up Avery from her house and drove with her alone to San Diego to complete the tournament, and put his hand on Avery’s thigh. (Compl., ¶ 14). During the evening hours of December 28, 2022, Brandon texted Avery and offered alcohol. (Compl., ¶ 16). Brandon texted Avery inappropriate comments multiple times on the evening of December 28, 2022. (Compl., ¶ 17). On December 29, 2022, Brandon asked Avery to come to his room to take a shot of Captain Morgan Rum, which she did. (Compl., ¶ 18). Around 11:30 p.m. on December 29, 2022, Brandon invited the girls from the team back to his room for alcohol. (Compl., ¶ 20). On the morning of December 30, 2022, Brandon texted Avery to go get coffee in the hotel lobby. He offered to bring it up to her, but she said she would go downstairs. He texted her: “I wanted you to stay. I just don’t want the girls to jump all

over our case. I like hanging with you.” After getting coffee, Avery went back to Brandon’s room with him where they sat on two separate beds and watched a movie. Brandon moved over to Avery’s bed and tried to convince her to give him a massage. She told him to stop and that she felt uncomfortable and left. (Compl., ¶ 21).

Brandon drove Avery to the game and touched her thigh, moving his hand all the way up her thigh toward her genital area, touching her bare skin under her shorts. Avery pushed his hand away and told him she was uncomfortable. (Compl., ¶ 22). On December 30, 2022, Brandon texted Avery telling her he wanted to talk to her over text. (Compl., ¶ 23). Brandon sent her another text on December 30, 2022 wherein he expressed his feelings and affection for her. (Compl., ¶ 24). On December 31, 2022, Avery texted Brandon telling him: “I’m very uncomfortable with what you just texted me and upset that it puts us both in a really bad position.” Avery then reported Brandon’s conduct to her mother, Shawn Steinhardt, who e-mailed him and demanded he leave Avery alone and resign from coaching the team. (Compl., ¶ 25). On December 31, 2022, Brandon responded to Avery’s message with another lengthy message attempting to backtrack on his previous message. (Compl., ¶ 26). On January 4, 2023, Shawn and Avery Steinhardt filed a police report against Brandon Lutz with the Orange County Sheriff’s Department. (Compl., ¶ 27).

Defendant and its employees have a duty to Avery Steinhardt to ensure she is kept safe at school and during school sponsored excursions. This duty includes, but was not limited to, the obligation to enact and enforce policies that would meaningfully prevent instances of physical and emotional harm against Avery Steinhardt. (Compl., ¶ 41). Defendant and its employees breached that duty by failing to enact or enforce policies that conform to the applicable standards of care, including by failing to enforce reasonable safety policies to protect its students, including Avery Steinhardt, from physical and emotional harm. (Compl., ¶ 42). Defendant and its employees hired, retained, employed, contracted with, and otherwise caused an agency relationship with persons to be in contact with and have caretaking authority over Avery. The persons that Defendant and its employees hired, retained, employed, or otherwise caused to be their agents, were unfit to perform the duties for which they were engaged. (Compl., ¶ 45). Defendants and their employees knew or should have known that these agents posed a risk to Avery and other students. (Compl., ¶ 46).

Education Code § 35330

The District’s first argument is that Plaintiffs’ claims against the District are barred by field trip immunity under Education Code § 35330.

Educ. Code § 35330, subd. (d) provides: “All persons making the field trip or excursion shall be deemed to have waived all claims against the district, a charter school, or the State of California for injury, accident, illness, or death occurring during or by reason of the field trip or excursion. All adults taking out-of-state field trips or excursions and all parents or guardians of pupils taking out-of-state field trips or excursions shall sign a statement waiving all claims.”

“ ‘Field trip’ is defined as a visit made by students and usually a teacher for purposes of first hand observation (as to a factory, farm, clinic, museum). ‘Excursion’ means a journey chiefly for recreation, a usual brief pleasure trip, departure from a direct or proper course, or deviation from a definite path.” (*Doe v. Mount Pleasant Elementary School Dist.* (2025) 113 Cal.App.5th 1208, 1219 [internal citations omitted]).

The District contends that the alleged claims which took place on December 27-30, 2022 in the basketball tournament took place in a “field trip or excursion” as provided by this statute. In *Myricks v. Lynwood Unified School Dist.* (1999) 74 Cal.App.4th 231, the court analyzed whether injuries sustained during a road trip for a basketball tournament fell under this provision, and held the following: “To the extent, if any, the road trip was a voluntary field trip or excursion related to LHS' girls' basketball program, the waiver provisions of Education Code section 35330, subdivision (d) must control.” (*Id.* at 240).

In *Barnhart v. Cabrillo Cmty. Coll.* (1999) 76 Cal.App.4th 818, 821, the court held that field trips as defined in the community college equivalent statute included “trips in connection with extra curricular sports programs.”

Finally, the District cites to *Roe ex rel. Callahan v. Gustine Unified Sch. Dist.* (E.D. Cal. 2009) 678 F.Supp.2d 1008, which was a case involving claims asserted by Plaintiff against Gustine Unified School District after Plaintiff was assaulted at a football camp by several upper class teammates and suffered additional acts of hazing. (*Id.* at 1011).

The court analyzed whether Educ. Code § 35330 applied to the trip at issue, and held: “Like traveling to an away game in *Barnhart* or traveling between tournament games in *Myricks*, the students here were off-campus, participating in a school-related athletic function.” (*Id.* at 1042). The court went on to state: “In this case, it is undisputed that the football camp was not a school-sponsored activity for which attendance was required and attendance credit given. Defendants provided substantial evidence that the trip was voluntary, the event was held off campus on the grounds of another school, that it related to athletic endeavors of the high school, and comported with legislative intent. Although the football camp's transportation was coordinated by the District, this fact ‘bear[s] no relation to whether the road trip was a

school sponsored activity’ and does not preclude the application of § 35330.” (*Id.* at 1043).

Plaintiff relies on *Doe v. Mount Pleasant Elementary School Dist.* (2025) 113 Cal.App.5th 1208, where the court held that the school district failed to show that its students’ attendance at outdoor science school amounted to a “field trip or excursion” subject to section 35330.

In *Doe*, Mount Pleasant Elementary School District contracted with the Santa Clara County Office of Education (SCCOE) for district students to spend four days during the school term in residence at Walden West Outdoor Science School. (*Id.* at 1213). Although district teachers “help[ed] the program run,” SCCOE provided direct overnight supervision of students, with district teachers on call if needed. Jane Doe sued the district, as well as SCCOE and an SCCOE employee, in connection with repeated sexual assaults she alleges the SCCOE employee committed against her when she attended Walden West as a fifth-grade student. (*Id.*).

The court held that “the hallmark of a field trip or excursion under section 35330 is that its observational or recreational purpose represents a departure from a school’s curriculum and required school purposes.” (*Id.* at 1219).

As the court explained:

The district’s evidence did not suggest any purely observational or recreational purpose. That students who opted out of attending Walden West were to remain at Ida Jew Academy for science education suggests the required school purpose that, as in *Castro*, would exempt an off-premises activity from section 35330’s deemed waiver of claims. This alone would have prevented the district from meeting its initial burden. [citation]

We also consider Doe’s undisputed evidence.

... Ample evidence invites a reasonable inference that Walden West was a program in outdoor science education that was an expected feature of the district’s science curriculum, and that it was operated by the SCCOE in conjunction with district teachers. Walden West provided ‘programs and classes in outdoor science education and conservation education,’ a statutory educational priority. (See § 8760, subd. (a)(1), (3).) Walden West was billed as a school, and students attended the outdoor school for four days in the academic year in lieu of science education in their usual district classrooms. Under the district’s contract with SCCOE, SCCOE provides most of the personnel necessary to run the camp—including cabin leaders and an overnight supervisor—while the district provides one credentialed teacher for every class of 36 students or less to ‘help[] the program run.’ Viewed

in the light most favorable to Doe, the record suggests that SCCOE and the district contracted to jointly operate the outdoor school's science education program, as contemplated by statute. (§§ 8760, 8765 [specifying that ‘all of the powers and duties authorized for ... school districts by Section 8760 are powers and duties of the county superintendent ... provid[ing] programs and classes in outdoor science education’].) A reasonable trier of fact could accordingly conclude that attendance at Walden West was neither a field trip nor an excursion, because it was neither a mere observational visit nor a recreational departure from the usual educational course.

(*Id.* at 1220-1221).

The District presents the following material facts in its separate statement: During Plaintiff's senior season at Tesoro, she participated in a Christmas tournament in San Diego, CA from December 27 through 30, 2022. (Undisputed Material Fact [“UMF”] 1). Head Coach Jim Arneson submitted a CUSD Field Trip form for the tournament in San Diego in December 2022. (UMF 2). On the drive down to San Diego for the basketball tournament on December 28, 2022, Lutz touched Plaintiff's thigh. (UMF 3). On December 30, 2022, in the car on the way from the hotel to the basketball tournament, Lutz touched Plaintiff's thigh. (UMF 4). While in San Diego for the basketball tournament, Lutz provided Plaintiff and her teammates alcohol in the hotel. (UMF 5). Prior to the 2022 Christmas Tournament, Lutz never touched Plaintiff, provided her alcohol, texted her anything sexual, nor sent her inappropriate photographs. (UMF 10). Plaintiff never reported Lutz, nor told anyone Lutz was texting her, prior to the 2022 tournament. (UMF 11). Players were expected to find their own transportation to the tournament as there was no school-provided transportation. (UMF 12). There were three designated chaperones for the field trip: Jim Arneson, Brandon Lutz, and a parent of one of the players. (UMF 13). During the tournament, Arneson did not hear loud noises coming from the players and had no knowledge Lutz was personally texting Plaintiff, had alcohol in his room, or was giving alcohol to players. (UMF 14). No girls on the team ever expressed any concern to Arneson about behavior between Plaintiff and Lutz. (UMF 15). After becoming aware of Lutz's actions, Principal Ezratty instructed to have Lutz not attend practice. (UMF 16). On January 5, 2023, CUSD placed Lutz on unpaid administrative leave pending investigation, and he was prohibited from contacting District employees, parents, or students. (UMF 17). Lutz had a meeting with Presby and Ezratty to discuss his misconduct, but before a second meeting could be held, Lutz resigned. (UMF 18).

The District argues that because the 2022 Christmas Tournament was during the school's winter break, player participation in the tournament was not required. The District cites the deposition transcript of witness Coach James Arneson, wherein he testified that participation in the

tournament was not required of the students on the team. (See Arneson Depo, Pg. 73:21-24, Hylton Decl. ¶ 13, Ex. K).

Finally, the District cites two statements made by Plaintiff in this court in support of its contention that the Christmas basketball tournament was a field trip or excursion: Compl. at ¶ 41, wherein Plaintiff alleges: “Defendant and its employees have a duty to Avery Steinhardt to ensure she is kept safe at school and during school sponsored excursions”; and Plaintiff’s Opposition to Motion for Leave to Amend Answer, at Pg. 11:24-27, wherein she states: “Plaintiff’s causes of action are openly and obviously derived from the events that took place during a school sponsored field trip at the end of 2022. There is no case to be made for the District having recently discovered this field trip. It is a material, essential, and central fact to the case.” (See ROA 129).

The court finds that the District has met its burden in establishing that the basketball tournament is a “field trip or excursion” pursuant to Educ. Code § 35330. Plaintiff did not create a triable material fact as to this issue. For example, Plaintiff did not demonstrate that the field trip was required for credits or otherwise part of her school curriculum.

However, Plaintiff contends that not all of the actions by Defendant Lutz occurred during the trip. In her Complaint, Plaintiff had also plead the allegations regarding the December 31, 2022 text messages-which occurred after the tournament. (See Compl., ¶¶ 25, 26).

She also provided evidence of these text messages in her AUMF:

Brandon Lutz (“BL”) texted Avery Steinhardt, (“AS”) on December 31, 2022: BL: “I feel like u are going to judge me. Maybe I shouldn’t send this.” AS: “??” (AUMF 257, 376, 489, 601, 7171). Brandon Lutz (“BL”) texted Avery Steinhardt, (“AS”) on December 31, 2022:

BL: But here is the part that is a little tough for me to get out, so hopefully this doesnt scare u off and u understand where I am coming from...

If I am going to be completely transparent and honest, you are very attractive to me, and not just in a physical way. I’m not saying that u aren’t beautiful, because obv u are. I’m just saying that I am attracted to how u are w me and the connection of who u are w me. I know it’s playful and I know nothing could ever happen between us, but that doesn’t necessarily make it easier. This is probably making u uncomfortable hearing hits after having to deal w some perv manager at Five Guys, and that is not my intention. I don’t

want u to feel that way about me and I hope that u don't. I'm just kinda stuck here in this mental space because I don't know if we should just go back to keeping it about basketball, or if we should further develop this friendship."

(AUMF 258, 377, 490, 602, 772).

Brandon Lutz ("BL") texted Avery Steinhardt, ("AS") on December 31, 2022. BL: "Bottom line... u are the kind of girl that I love being around, and the fact that u are unattainable for me, for many different reasons, makes it tougher. If you were not my player, a little older, or if I was a little younger, I would have already made a move and would have probably been turned down. It was honestly hard not to during this trip. Girls like you don't come around very often." (AUMF 259, 378, 491, 603, 773). Brandon Lutz ("BL") texted Avery Steinhardt, ("AS") on December 31, 2022. BL: "It was probably good that u didn't come by last night after, cus after a few drinks, my mind was all wrapped up into the situation and I probably would have said sum then." (AUMF 260, 379, 492, 604, 774).

In Plaintiff's response to Defendant's SSUMF, Plaintiff also provides evidence of other text messages that occurred prior to the Christmas Tournament.

The District failed to address the issue of whether these texts also fall under immunity in its moving papers. Instead, the District focuses on the events that transpired during the December 27-30, 2022 tournament.

The District argues for the first time in the Reply that these text messages, or any nonphysical conduct, cannot be the subject of Plaintiff's claims, citing to *Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 627 ("Thomas cites no authority imposing on a university a duty to protect students from harm of a nonphysical nature. She asks us to extend existing authority imposing a duty of care to protect against foreseeable physical harm to the harm resulting from hostile environment sexual harassment without in any way analyzing why this new duty should be imposed and what parameters should define its scope. In failing to develop her argument, Thomas fails to meet her burden on appeal.").

However, as the moving party, the District had the burden to establish "*a complete defense or otherwise showing there is no factual basis for relief on any theory reasonably contemplated by the opponent's pleading.*" (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661 [quotations omitted, emphasis in the original]; see also *Trustees of Capital Wholesale Electric etc. Fund v. Shearson Lehman Brothers, Inc.* (1990) 221 Cal.App.3d 617, 627 ["general rule is that points raised

for the first time in reply brief will not be considered unless good cause is shown for failure to present them before”])

Accordingly, while the court finds that the District established that the Christmas Tournament falls under Educ. Code § 35330, the court also finds that that District failed to establish that all of the conduct (the text messages) in the Complaint falls under this Section.

No Actual or Constructive Notice

Next, the District alternatively seeks summary adjudication as to the following issue: Plaintiff’s first and second causes of action fail because the District had no actual or constructive notice of Defendant Lutz’s dangerous propensities prior to the 2022 Christmas Tournament.

“[A] school district is liable for the negligence of supervisory employees who ‘knew or should have known of [a school employee’s] dangerous propensities, but nevertheless hired, retained and failed to properly supervise’ the employee.” (*Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 25; see also *Rancho Cucamonga Central School Dist. v. Superior Court* (2025) 116 Cal.App.5th 718, 721).

“Thus, the school district may be liable for hiring, supervising, or retaining an employee if the district’s supervisory personnel had actual or constructive knowledge of the employee’s dangerous propensities.” (*Rancho Cucamonga Central School Dist.*, *supra*, 116 Cal.App.5th at 721 [emphasis added]).

“Constructive knowledge is knowledge that ‘may be shown by circumstantial evidence “which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts.” ’ ” (*Id.* [internal citations omitted, cleaned up]).

In *Rancho Cucamonga Central School Dist.*, a former student brought action against the district, asserting claims arising from alleged sexual abuse by the director of a childcare program that was operated on campus of student’s middle school. The fourth district court of appeal reversed the lower court’s denial of summary judgment, holding that:

[T]he lack of any evidence that any district employees had either actual or constructive knowledge of Johnson’s dangerous propensities is fatal to Flowers’s claim. The undisputed facts show no district employee, let alone a supervisor, witnessed any of the alleged sexual assaults or inappropriate behavior by Johnson, and Flowers did not report them to anyone during his time at the middle school. There also is no evidence any district employee observed anything that reasonably should have

triggered suspicion of abuse to justify an inference of constructive knowledge.

The facts of *Roe* provide a useful contrast. In *Roe*, this court found the complaint stated a claim against the defendant school district for negligent supervision of a school janitor who had sexually abused students. (*Roe, supra*, 85 Cal.App.5th at p. 31, 300 Cal.Rptr.3d 340.) The plaintiffs had not alleged the defendant district had actual knowledge of the abuse. (*Id.* at p. 28, 300 Cal.Rptr.3d 340.) But they had alleged that “two principals, one of whom was also a school district director, and an assistant principal witnessed plaintiffs sitting on [the janitor’s] lap and [the janitor] escorting plaintiffs across campus to empty rooms,” in violation of school policy about being alone with students in rooms with closed doors and having physical contact with students. (*Id.* at p. 30, 300 Cal.Rptr.3d 340.) We found these alleged facts sufficient to state a claim for negligent supervision of the janitor by demonstrating constructive knowledge of abuse by district supervisory personnel. (*Id.* at p. 31, 300 Cal.Rptr.3d 340.) Here, in contrast, there is no evidence any district employee saw Johnson do anything abusive or inappropriate, or giving rise to suspicion of abuse or inappropriate behavior. Thus, the district is entitled to summary adjudication on Flowers’s cause of action for negligent supervision of Johnson.

(*Id.* at 722 [emphasis added]).

Notably, however, this court also found that the application of this standard applied to claims of negligent hiring, retention or supervision of its employees:

Flowers’s arguments for a contrary conclusion muddle together the standard for a claim the district negligently supervised *students* with the standard for a claim based on negligently supervising an *employee* (or, in this case, a non-employee operating a program for district students on a district campus). With respect to a claim that the district negligently failed to supervise students, “plaintiffs must allege facts demonstrating that school personnel failed to exercise ‘ ‘ordinary prudence.’ ” (*Roe, supra*, 85 Cal.App.5th at p. 29, 300 Cal.Rptr.3d 340, *quoting C.A., supra*, 53 Cal.4th at p. 869, 138 Cal.Rptr.3d 1, 270 P.3d 699.) “ ‘Either a total lack of supervision [citation] or ineffective supervision [citation] may constitute a lack of ordinary care on the part of those responsible for student supervision.’ ” (*Roe*, at p. 29, 300 Cal.Rptr.3d 340, *quoting C.A.*, at p. 869, 138 Cal.Rptr.3d 1, 270 P.3d 699.) That standard applies only to Flowers’s first cause of action, based on allegedly negligent supervision of students, which we

excluded from this proceeding in our order to show cause. It is not the standard applicable to the cause of action at issue.

(*Id.* at 722 [emphasis in original]).

Here, Plaintiff's first cause of action is for negligence, and based on the following "Defendant and its employees have a duty to Avery Steinhart to ensure she is kept safe at school and during school sponsored excursions. This duty includes, but was not limited to, the obligation to enact and enforce policies that would meaningfully prevent instances of physical and emotional harm against Avery Steinhart." (Compl., ¶ 41). Plaintiff's *second* cause of action is for negligent hiring, retention and/or supervision.

The District presents the following in its SSUMF, in addition to SSUMF 1-5 above: As part of the background check during the process of hiring a coach, reference checks are performed and fingerprints are run through the Department of Justice and FBI. (UMF 6). Brandon Lutz passed both the DOJ and FBI screening as part of the onboarding process. (UMF 7). Lutz was hired October 7, 2021 and completed his mandatory trainings upon hiring including sexual misconduct: staff-to-student. (UMF 8). The District presents evidence that the Assistant Principal Ms. Engelken, the Principal Mr. Ezratty, and the other basketball coach Mr. Arneson were not aware of any concerns about Defendant Lutz's behavior. (Deposition of April Engelken, Hylton Decl. ¶ 18, Ex. P, Pg. 42:6-8; Deposition of Ken Ezratty, Hylton Decl. ¶ 11, Ex. I, Pg. 42:18-21; Deposition of Jim Arneson, Hylton Decl. ¶ 13, Ex. K, Pg. 118:15 – 119:13).

Prior to the 2022 Christmas Tournament, Lutz never touched Plaintiff, provided her alcohol, texted her anything sexual, nor sent her inappropriate photographs. (SSUMF 10). Plaintiff never reported Lutz, nor told anyone Lutz was texting her, prior to the 2022 tournament. (SSUMF 11). No girls on the team ever expressed any concern to Arneson about behavior between Plaintiff and Lutz. (SSUMF 15). After becoming aware of Lutz's actions, Principal Ezratty instructed to have Lutz not attend practice. (SSUMF 16). On January 5, 2023, CUSD placed Lutz on unpaid administrative leave pending investigation, and he was prohibited from contacting District employees, parents, or students. (SSUMF 17). Lutz had a meeting with Presby and Ezratty to discuss his misconduct, but before a second meeting could be held, Lutz resigned. (SSUMF 18).

The court finds that the District established its burden of demonstrating that the second cause of action fails because the District had no actual or constructive notice of Lutz's dangerous propensities prior to the 2022 Christmas Tournament. As the facts establish, neither the Assistant Principal, the Principal nor the other basketball coach had any knowledge of Lutz's dangerous propensities.

There is no evidence that the other players on the team made complaints, and Plaintiff herself had never reported Lutz to the District prior to the Christmas Tournament. After the Christmas Tournament and the report of his conduct, the District immediately took action and Defendant Lutz resigned .

Accordingly, the burden shifts to Plaintiff to create a triable issue of material fact. Plaintiff argues that “Defendant’s no-notice argument also misapprehends Plaintiff’s claims. Prior actual or constructive knowledge of a particular employee’s propensity for sexual misconduct is an element of negligent hiring and retention—it is not an element of negligent supervision, of the District’s mandatory duties under Government Code section 815.6, or of the special-relationship duty to supervise students.” (Opp., 14:12-26). However, as with the plaintiff in *Rancho Cucamonga Central School Dist.*, Plaintiff’s arguments here muddle together the standard for a claim the district negligently supervised *students* with the standard for a claim based on negligently supervising an *employee*.

Next, Plaintiff contends that the District was on notice that Lutz was in violation of multiple school policies-specifically, his failure to complete training and his paperwork for the field trip was incomplete, including his driver form. In support of this contention, Plaintiff cites to the following AUMFs: Records show that Lutz only completed trainings in 2021 and was regularly emailed regarding failure to sign the policies and procedures handbook, and to complete mandatory training, including student safety and mandated child abuse reporter training in the autumn of 2022. (AUMF 266). Defendant Lutz’s Employee/Volunteer Personal Automobile Use Permission was not produced, if it exists. (AUMF 196).

In support of AUMF 266, Plaintiff includes copies of four automated reminders dated 12/4/22, 12/11/22, 12/25/22, and 12/30/22 which reminds Defendant Lutz that he still needs to complete the “CUSD Policy Acceptance for the 2022-2023 school year”, and attaches an exhibit an imagine showing that the following training courses were past due: “Coronavirus 101 - What You Need to Know (Full Course)”, “IPM [Integrated Pest Management] for Teachers and Office Staff (Full Course)”, and “Mandated Reporter: Child Abuse and Neglect (California Full). (Friedman Decl., ¶ 3, Ex. 1).

However, Lutz’s failure to timely complete three courses on Coronavirus 101 - What You Need to Know (Full Course)”, “IPM [Integrated Pest Management] for Teachers and Office Staff (Full Course)”, and “Mandated Reporter: Child Abuse and Neglect” does not create a triable issue of material fact as to whether the District had constructive knowledge of Lutz’s dangerous propensities, particularly

where Lutz had completed trainings for sexual misconduct and staff-to-student training. (SSUMF 8).

Compare, for example, the appellate court's finding in *Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, where the appellate court found constructive knowledge where: "Plaintiffs allege that when they were six years old they routinely were missing from their first grade classrooms, sometimes up to 30 minutes at a time. Plaintiffs' teachers were aware of the absences and did not investigate why plaintiffs were missing so frequently. In addition, numerous District employees, including two school principals (one of whom is also a school district director), an assistant principal, and plaintiffs' teachers, saw Martinez accompany plaintiffs individually or in groups across campus during breaks to empty classrooms or restrooms. The same employees are alleged to have seen plaintiffs sitting on Martinez's lap. Plaintiffs further allege that as a janitor Martinez's role did not require him to have any one-on-one contact with any students." (*Id.* at 29).

In her response to the District's SSUMF, Plaintiff also contends that she previously disclosed CUSD employee witnesses and that Defendant did not elicit testimony from those witnesses. (See PL's Response to DF's SSUMF 9).

Plaintiff attaches a copy of her response to special interrogatory no. 11 which asks "Identify all persons with knowledge of facts pertaining to any of the events surrounding this lawsuit, including all witnesses to liability and damages/injuries." Plaintiff responded, in part: Donna Horn, Gloria Diaz, Kerri McDaid, Rich Montgomery and Denice Scarola, all employees of CUSD, who have knowledge of the following: "The SoCal Holiday Classic"; "The hotel arrangements"; "The chaperones"; "The investigation into Brandon Lutz"; and "[t]he resignation/termination of Brandon Lutz." She also lists Ernie Bucher, a CUSD employee/the athletic director, who "has, at least, knowledge of the police investigation conducted by the Orange County's Sheriff's Department which spoke to Mr. Bucher on the phone", and Melissa Moore, the CUSD who has knowledge of CUSD's policies, procedures and training, and of CSUD's enforcement mechanisms and knowledge of Lutz's failure to complete the training required of him. (See Friedman Decl., ¶ 3, Ex. 2).

However, none of these witnesses were listed to have any knowledge of any facts that would give rise to constructive knowledge of Brandon Lutz's dangerous propensities *prior to* the actions that took place during the Christmas Tournament. Finally, Plaintiff's challenges to the District's SSUMF nos. 11 and 15, wherein Plaintiff contends that the deposition testimony is more narrow than the facts as set forth in the SSUMF, also do not create a triable issue of fact, as they still do not demonstrate any evidence of any actual or constructive knowledge of Lutz's dangerous propensities.

Accordingly, the court finds that Plaintiff failed to create a triable issue of material fact as to the second cause of action.

Gov. Code §§ 818.2 and 820.2

In the District’s alternative motion for summary adjudication, the District contends that the first cause of action is barred by Government Code §§ 818.2, 820.2.

Gov. Code § 818.2 provides: “A public entity is not liable for an injury caused by adopting or failing to adopt an enactment or by failing to enforce any law.”

Gov. Code § 820.2 provides: “Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.”

The District describes this statute discretionary immunity for quasi-legislative policy-making decisions, and cites to *Barner v. Leeds* (2000) 24. Cal.4th 676, which provides: “Under that statute, ‘[i]mmunity is reserved for those “basic policy decisions [which have] ... been [expressly] committed to coordinate branches of government,” and as to which judicial interference would thus be “unseemly.” [Citation.] Such “areas of quasi-legislative policy-making ... are sufficiently sensitive” [citation] to call for judicial abstention from interference that ‘might even in the first instance affect the coordinate body’s decision-making process’ [citation].” ’ ” (*Id.* at 685).

As stated above, Plaintiff alleges in her first cause of action for negligence that the District failed to “enact” or “enforce” reasonable safety policies to protect its students. (Compl, ¶ 42). These immunity statutes, however, only pertain to adopting or failing to adopt an enactment, or basic policy decisions. It is true that Plaintiff alleges that the District should have adopted certain policies regarding communications between students and staff, traveling in vehicles with a second adult, and other travel/chaperone policies. (Compl., ¶¶ 37-40).

However, Plaintiff separately alleges that the District failed to enforce its own policies.

Plaintiff contends that the District failed to follow its own rules/policies/procedures regarding Title IX reporting and allowing Defendant Lutz to drive the vehicle without completing the registration form, while generally referring to AUMFs 74-90.

The District had the burden to establish there is no factual basis for relief on *any* theory reasonably contemplated by the opponent's pleading. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661).

The District has not provided any authority in support of its argument that the District's alleged failure to enforce its own policies and procedures falls under the immunity afforded by these two statutes.

Causation

However, the District separately contends that any act or failure to act by the District did not cause Plaintiff's injuries. "To establish their negligence claim, plaintiffs must prove duty, breach, causation, and damages." (*C.I. v. San Bernardino City Unified School District* (2022) 82 Cal.App.5th 974, 983).

"Causation may be decided as a question of law if under the undisputed facts, 'there is no room for a reasonable difference of opinion.'" (*Romero v. Los Angeles Rams* (2023) 91 Cal.App.5th 562, 568 [citing *Nichols v. Keller* (1993) 15 Cal.App.4th 1672, 1687]).

"Only 'where reasonable [people] will not dispute the absence of causality, [may] the court ... take the decision from the jury and treat the question as one of law.'" (*Hernandez v. Jensen* (2021) 61 Cal.App.5th 1056, 1065 [internal citations omitted]).

In *Thompson v. Sacramento City Unified School Dist.* (2003) 107 Cal.App.4th 1352, the court held that "[i]t is well settled that 'a school district bears a legal duty to exercise reasonable care in supervising students in its charge and may be held liable for injuries proximately caused by the failure to exercise such care.'" (*Id.* at 1369 [internal citation omitted]). The court also held that "[t]o establish a right of recovery, a student must prove the traditional elements of actionable negligence, including causation. ... In fact, the Government Code expressly requires proximate causation for recovery against a public entity. (Gov.Code, § 815.2, subd. (a).)" (*Id.* at 1371).

The District contends that Defendant Lutz deliberately evaded scrutiny by acting behind closed doors and away from supervisory personnel, and that there is zero admissible evidence proving a substantial link or nexus that any of CUSD's actions were the cause of Plaintiff's injury.

The District presents the following SSUMFs in support of this assertion: As part of the background check during the process of hiring a coach, reference checks are performed and fingerprints are run through the Department of Justice and FBI. (SSUMF 6). Brandon Lutz passed both the DOJ and FBI screening as part of the onboarding process. (SSUMF 7). Lutz was hired October 7, 2021 and completed his mandatory

trainings upon hiring including sexual misconduct: staff-to-student. (SSUMF 8). Prior to December 2022, no CUSD official was aware of any concerns about Lutz's behavior. (SSUMF 9). Plaintiff never reported Lutz prior to the 2022 tournament. (SSUMF 11). During the tournament, Arneson did not hear loud noises coming from the players and had no knowledge Lutz was personally texting Plaintiff, had alcohol in his room, or was giving alcohol to players. (SSUMF 14). No girls on the team ever expressed any concern to Arneson about behavior between Plaintiff and Lutz. (SSUMF 15). The court finds that the District met its burden with regards to the issue of causation.

In her Opposition, Plaintiff contends that had the District enforced its policies prohibiting private transportation, unsupervised access to students, alcohol use, and violations of curfew and check-in requirements, the opportunities Lutz exploited to isolate Plaintiff, furnish her alcohol, and escalate his misconduct would have been significantly curtailed. (Plaintiff generally cites to AUMF nos. 497-606 in support of this assertion).

There are various problems with this argument, however. First, every one of these purported failures is related to the misconduct that occurred during the Christmas Tournament. As the District established, it cannot be liable for conduct that occurred during the Christmas Tournament. This leaves the remaining allegations-the text messages between Lutz and Plaintiff-and Plaintiff failed to establish that any purported failure to enforce policy caused Lutz to privately text message Plaintiff. The District presented evidence that these messages were private, and there is no evidence that anyone other than Lutz or Plaintiff knew about them prior to Plaintiff reporting Lutz in January of 2023, which promptly resulted in the District taking action against Lutz.

But even if the court were to consider the conduct that occurred during the Christmas Tournament, Plaintiff still failed to create a triable issue demonstrating that any of the purported policy failures or lack of supervision caused the injury. First, Plaintiff contends that the District failed to make a report to the Title IX officer after the report. However, Plaintiff's evidence only establishes that Principal Ezratty did not remember if he made a Title IX report. (See AUMF 81). In any event, a failure to enforce a Title IX reporting policy *after* the incident already occurred cannot be said to have caused the incident to occur in the first place.

Next, Plaintiff argues that the District failed to follow its own self-transport policy because Lutz was permitted to drive Plaintiff even though he did not complete the requisite paperwork to drive. However, Plaintiff does not provide evidence showing that the District permitted Lutz to drive Plaintiff. Plaintiff even contends that only Coach Arneson and a parent chaperone completed the forms for Employee/Volunteer Personal Automobile Use Permission. (AUMF 115,

		116). None of the forms submitted by Coach Arneson for the field trip that were produced by either the District or Plaintiff show that Defendant Lutz intended to transport students. The Field Study-Teacher Request Form only stated that Lutz would supervise, not drive. (Friedman Decl., ¶ 19, Ex. 28). It is also unclear if Plaintiff is contending that the District did not enforce “Section 5: Athletics and Co-Curricular Transportation Guidelines”, which Plaintiff referenced in her AUMF. “Section 5: Athletics and Co-Curricular Transportation Guidelines” states that student-arranged self transport may occur if various conditions are met, which includes the following: “No district employee may assist with arranging student self-transportation, assigning carpools, etc. under any circumstances. Students and parents must arrange self-transportation on their own.” (AUMF 88). But based on Plaintiff’s evidence, the District was, at most, only aware that Coach Arneson and a parent completed a driver form. There is no evidence that the District -or any supervisory employee - had knowledge that Defendant Lutz would either be driving or taking part in any way of arranging carpool. Plaintiff also presents evidence that it failed to enforce policies relating to ensuring that its employees complete trainings. But as discussed above, the delinquency of three trainings Coronavirus 101, IPM (Integrated Pest Management), and Mandated Reporter cannot be said to have caused Lutz’s actions, particularly where Defendant Lutz <u>had</u> completed trainings for sexual misconduct and staff-to-student training. (SSUMF 8). Plaintiff’s contention that Defendant failed to enforce its own drug and alcohol policy and that “CUSD’s employees did not follow multiple policies that were already in place” is, as the District notes, one akin to strict liability. Plaintiff provided no evidence creating a triable issue as to whether the District failed to <u>enforce</u> its own policies, other than evidence of Lutz’s failure to timely complete the three trainings for Coronavirus 101, IPM (Integrated Pest Management), and Mandated Reporter. After Lutz’s misconduct and policy violations were reported, the District immediately began investigating and took action against Lutz, no further misconduct took place, and Lutz resigned. Accordingly, the court GRANTS summary judgment. Defendant CUSD shall give notice.
4	Johnson vs. General Motors LLC	Defendant General Motors’s unopposed motion to compel compliance with C.C.P. § 871.26 and request for sanctions is GRANTED.

Defendant moves for an order for compliance requiring Plaintiff Joel Johnson to appear for his initial depositions under Code of Civil Procedure section 871.26, subdivision (c)(1), and for the imposition of sanctions against Plaintiff's counsel in the amount of \$1,500 as required under Code of Civil Procedure section 871.26, subdivision (j)(2).

Deposition

Code of Civil Procedure section 871.26 applies to a civil action brought against a manufacturer seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty. (Code Civ. Proc. §§ 871.20(a), 871.26(a).) Section 871.26 applies to a civil action filed on or after January 1, 2025. (Code Civ. Proc. § 871.26(l).)

Section 871.29(a)(1) provides the procedure for a manufacturer to elect to be governed by the chapter, which includes the manufacturer's electing "by October 31 of the preceding calendar year, except as provided in Section 871.30." Section 871.29(b) further clarifies: "Unless a manufacturer has made the election described in subdivision (a) that covers a given year, Sections 871.20 to 871.28, inclusive, shall not apply to an action described in subdivision (a) of Section 871.20 with respect to all of the manufacturer's motor vehicles sold during that year, except as provided in Section 871.30."

Section 871.30, in turn, provides that: "Within 30 days of the effective date of the act adding this section [which was April 2, 2025], a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs." In other words, the Legislature explicitly provided a procedure by which manufacturers such as Defendant could elect to apply the statutory procedures retroactively to all cases filed after January 1, 2025.

The Court takes judicial notice on its own volition that Defendant elected to be governed under the optional statutory framework of Sections 871.20 et seq. on 4/23/25, which was within the 30-day window provided by section 871.30. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 752.) (*See* Cal. Dep't of Consumer Affs., Manufacturer Opt-in, https://www.dca.ca.gov/acp/accepted_manufacturers.shtml).

Plaintiffs commenced the instant action on 3/07/25, and is one for restitution or replacement of a motor vehicle brought against Defendant,

the alleged manufacturer, and includes a claim pursuant to Civil Code section 1793.2, subdivision (d), as well as a claim for civil penalties pursuant to Civil Code section 1794, subdivision (c) based on alleged noncompliance with the applicable express warranty. (Complaint, ¶¶ 27-29.)

Code of Civil Procedure section 871.26, subdivision (c) states:

(c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours of the following deponents:

(1) The plaintiff.

(2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i).

(Code Civ. Proc. § 871.26, subd. (c).)

Defendant states that it filed its demurrer to the complaint on July 11, 2025. (Mvg. Haro Decl., ¶ 3). With its demurrer, Defendant served a meet and confer letter, that issued a notice for Plaintiff to appear for a deposition under section 871.26(c). (Id., ¶ 4 & Ex. A). The letter specifically informed Plaintiff that “[t]hese depositions are to be completed no later than 120 days after the filing of the answer or responsive pleading.” (Id.) Defendant also attached a notice of deposition, setting Plaintiff’s deposition for July 29, 2025. (Id., ¶ 5 & Ex. B). The statutory deadline for Plaintiff to conduct the deposition was November 7, 2025. (Id., ¶ 11). As of the date of the motion, Plaintiff’s deposition has still not been conducted.

In opposition, Plaintiff’s counsel states that on June 19, 2026, Plaintiff’s counsel offered deposition dates for August 5, 10, and 11, 2026. (Opp. Smith Decl., ¶ 4 and Ex. 1). Even though Plaintiff did not meet the statutory deadlines, Plaintiff contends that it has shown good cause as Plaintiff is now willing to cooperate and has offered dates.

The court finds that, on this record, Plaintiff has admittedly failed to comply with the requirements of Code of Civil Procedure section 871.26, subdivision (c)(1). Plaintiff’s offered dates on June 19, 2026 (Opp. Smith Decl., ¶ 4), over six months after the November 7, 2025 statutory deadline to do so and two months after this motion was filed. Plaintiff’s counsel has offered no justifiable reason for such a delay and/or failure to comply with section 871.26(c)(1). Indeed, as of the date of this hearing, Plaintiff’s deposition still has not been “conducted” as required by section 871.26(c)(1), as Plaintiff has offered dates in August 2026.

		For these reasons, the motion is GRANTED. Plaintiff is ordered to appear for a deposition within 15 days of this order and/or at mutually agreeable date and time. <u>Sanctions</u> Code of Civil Procedure section 871.26, subdivision (j) states in part: (j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: [¶.] (2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c). (3) For a plaintiff's repeated noncompliance with subdivision (b), (c), or (d), a court shall order the case dismissed without prejudice and the plaintiff's attorney to be responsible for costs awarded to the manufacturer. Code Civ. Proc., § 871.26 (Code Civ. Proc. § 871.26, subd. (j)(2), (3).) Plaintiff's counsel has only stated that in June 19, 2026, Plaintiff's counsel offered dates for depositions in August 2026. (Opp. Smith Decl., ¶ 4). Nowhere in Plaintiff's counsel's declaration has Plaintiff justifiably explain the failure to comply. There is no justification for the delays, despite Defendant's already sending a meet/confer letter notifying Plaintiff of his obligations under section 871.26. Sanctions under section 871.26(j)(2) are, therefore, mandatory under the circumstances here. Plaintiffs' counsel, Strategic Legal Practices, APC, is ordered to pay monetary sanctions in the amount of \$1,500 payable to Defendant within 30 days of the service of the notice of ruling. Defendant to give notice.
5	Lopez vs. Cross Roads Apartments	Defendant FDK Enterprises LP A Calif Ltd Partnership Magellan Management LLC dba Cross Roads Apartments moves for an order establishing the truth of each matter specified in the Request for Admissions, Set One, served on plaintiff Tina Lopez. For the following reasons, the motion is GRANTED. Plaintiff shall pay monetary sanctions of \$525 to Defendant by August 6, 2026.

		A propounding party may ask the court for an order that deems admitted the matters contained in the requests for admission if the receiving party fails to respond to the requests for admission. (Code Civ. Proc. § 2033.280(b).) The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in substantial compliance with Code Civ. Proc. § 2033.220 before the hearing on the motion. (Code Civ. Proc. § 2033.280(c).) Defendant served the Requests for Admissions (Set One)) (“RFAs”) on Plaintiff on January 7, 2026. (Chang Dec.) By the time this motion was filed on March 9, 2026, Plaintiff had not responded to the RFAs. (Ibid.) Pursuant to Code Civ. Proc. § 2033.280, the court shall grant the motion unless it finds that Plaintiff has served responses in “substantial compliance” with Code Civ. Proc. § 2033.220 before the hearing. (Code Civ. Proc. § 2033.280(c).) Plaintiff did not oppose the motion and there is no evidence that Plaintiff served responses to the RFAs in substantial compliance with the Code. Thus, the recommendation is to grant the motion to the extent it seeks to deem the RFAs admitted. Sanctions are mandatory for an outright failure to respond to requests for admission. (Code Civ. Proc. § 2033.280 (“It is mandatory that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.”).) Defendants seeks monetary sanctions of \$804 to account for 2 hours to prepare the motion at an hourly rate of \$186, 2 hours of anticipated time to review any opposition and draft a reply and appear at the hearing, and a filing fee of \$60. Because the motion was not opposed (and thus no reply was necessary), the Court ORDERS Plaintiff to pay monetary sanctions of \$525, calculated from 2.5 hours at \$186/hour plus the \$60 filing fee. Plaintiff shall pay the sanctions of \$525 by August 6, 2026. Defendant is ordered to give notice.
6	Pacific Sands LLC vs. Smith	Cross-Defendant Pacific Sands LLC (“Pacific Sands”) moves for summary judgment on the Cross-Complaint filed by Cross-Complainant Nanette Smith (“Ms. Smith”). For the following reasons, the motion is GRANTED. The evidentiary objections filed by Pacific Sands are OVERRULED. A defendant seeking summary judgment bears the burden of persuasion and burden of proof by a preponderance of the evidence to negate the plaintiff’s claim. It may do this by demonstrating the claim has no merit, that the plaintiff cannot prove an element of the claim, or that the defendant has a complete defense entitling it to judgment as a matter of

law. (Code Civ. Proc. § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-51.)

The Cross-Complaint filed by Ms. Smith asserts causes of action for 1) quiet title based on adverse possession, 2) unjust enrichment, and 3) declaratory relief.

Adverse Possession

To obtain title through adverse possession, Ms. Smith must establish that: (1) she actually occupied the Property “under such circumstances as to constitute reasonable notice to the owner,” (2) her possession was “hostile to the owner's title,” (3) she claimed the Property as her own “under either color of title or claim of right,” (4) her possession was “continuous and uninterrupted for five years,” and (5) she paid “all the taxes levied and assessed upon the property during the period.” (*Preciado v. Wilde* (2006) 139 Cal.App.4th 321, 325; *Dimmick v. Dimmick* (1962) 58 Cal.2d 417, 421; see also Code Civ. Proc. §§ 322–325.)

Pacific Sands contends the first cause of action for quiet title based on adverse possession fails for two reasons: 1) Ms. Smith cannot establish the element of adverse and continuous use for the required five-year time period, and 2) Ms. Smith cannot properly establish the element of payment of property taxes as she was making such payments as required by the terms of her Sublease.

Pacific Sands is the fee owner of 8041 Ebbitide Circle, Huntington Beach, CA 92646 (the (“Property”). (Cross-Defendant’s Material Fact (“CDMF”) 1.) Pacific Sands developed the Property with a home and subleased it to a sublessee in 1963, together with a purchase option. (CDMF 3.) On July 14, 2022, Pacific Sands exercised its own option and acquired the fee interest to the Property. (CDMF 5.) After purchasing the Property, Pacific Sands continued to sublease it to third parties, who remained bound by the terms of the Sublease and the terms of the Land Purchase Option Agreement. (CDMF 6.)

On December 2, 1986, the then sublessees of the Property assigned their interest in the Sublease and the Land Purchase Option Agreement to Stephen Smith (“Mr. Smith”) and Ms. Smith. (CDMF 7.) The Land Purchase Option Agreement provides that Pacific Sands can terminate the option based on payment defaults. (CDMF 8.)

Based on Ms. Smith’s material breaches by not paying amounts owed under the Sublease and Land Purchase Option, on April 30, 2008, Pacific Sands recorded a Notice of Termination of Land Purchase Option Agreement. (CDMF 9.)

Pacific Sands mailed a copy of the recorded Notice of Termination of Land Purchase Option Agreement to Ms. Smith by letter dated August 26, 2008. (CDMF 10.) Since that termination, Pacific Sands never billed Mr. or Ms. Smith for any option payments and the Smiths never attempted to pay any option payments. (CDMF 11.) Ms. Smith continued to default on her Sublease obligations even after Pacific Sands terminated the Land Purchase Option Agreement. (Ibid.) Ms. Smith disputes this fact by pointing to the dissolution of her marriage to Mr. Smith on November 3, 2022, but this does not negate the fact. On August 6, 2020, Ms. Smith's Sublease expired and she failed to vacate. (CDMF 12.)

Ms. Smith lost the purchase option due to the breach confirmed in the recorded Notice of Termination of Land Purchase Option Agreement. (CDMF 13.) At the time the Sublease expired, Pacific Sands could not evict Ms. Smith due to eviction restrictions in place due to the COVID-19 pandemic. (CDMF 14.) Ms. Smith has continued to occupy the Property. (CDMF 17.) On August 6, 2024, Pacific Sands filed this action to recover possession of the Property. (CDMF 18.)

Ms. Smith contends that her adverse possession of the Property began in June 2019, the effective date of her last payment. Ms. Smith points out that her last payment of \$699.51 was made on May 16, 2019. (Cross-Complainant's Material Fact ("CCMF") 14.)

Ms. Smith claims that the August 6, 2020 expiration date of the Sublease should not apply to her because she is not a party to that Sublease. Not quite. On December 2, 1986, Ms. Smith signed an Assignment and Acceptance Agreement, stating that the Smiths purchased all rights, title, and interest under the Sublease, and that Ms. Smith agrees to keep, perform, and be bound by all of its terms, covenants, and conditions. (Brock Dec., Ex. 3.) Ms. Smith's failure to pay rent beginning in June 2019 did not terminate the Sublease or end Ms. Smith's right to possession of the Property.

Code Civ. Proc., § 326 is instructive. Under that state:

When the relation of landlord and tenant has existed between any persons, the possession of the tenant is deemed the possession of the landlord until the expiration of five years from the termination of the tenancy, or, where there has been no written lease, until the expiration of five years from the time of the last payment of rent, notwithstanding that such tenant may have acquired another title, or may have claimed to hold adversely to his landlord. But such presumptions cannot be made after the periods herein limited.

Here, there is a written lease and sublease. (Brock Dec., Ex. 1.) Thus, the time of the last payment of rent is not determinative. (Code Civ.

Proc. § 326.) Ms. Smith cannot establish the element of adverse and continuous use of the property for the required five-year time period.

Unjust Enrichment

The second cause of action for unjust enrichment alleges:

Whereas the Land Lease calls for forfeiture of not only the land upon which Cross-Complainant's Property is situated, but also all its structural improvements, the purchase price paid for the Property, and its appreciated value, the cumulative value of which approximates \$1,500,000, enforcement of the forfeiture provisions of the Land Lease would create an unconscionable windfall and an unjust enrichment in favor of Cross-Defendant Pacific Sands LLC to the detriment of Cross-Complainant. Accordingly, allowing Cross-Defendant to retain these benefits without compensating Cross-Complainant for their reasonable value would be inequitable.

(Cross-Complaint, ¶ 15.)

The Sublease explicitly provides that, upon expiration of the lease, the lessee shall have the right to remove all buildings and other improvements from the premises until 60 days after the expiration of the lease. (CDMF 16; Brock Dec., Ex. 1.) However, if any such building or improvement is not removed within that timeframe, it shall become part of the land and shall belong to the lessor without any payment. (Ibid.)

Pacific Sands is correct that the second cause of action for unjust enrichment is negated by the express terms of the Sublease.

Declaratory Relief

The third cause of action for declaratory relief alleges:

18. An actual controversy has arisen between Cross-Complainant and Cross Defendant Pacific Sands LLC regarding Cross-Complainant's right to compensation for improvements on land associated with the Property.

19. Cross-Complainant seeks a judicial declaration that Cross-Defendant is required to compensate Cross-Complainant for the fair value of the improvements, or that Cross-Complainant has an equitable interest therein.

(Cross-Complaint, ¶¶ 18-19.)

Code Civ. Proc. § 1060 permits a party to seek a declaration of that party's rights or duties with respect to another. However, Code Civ. Proc. § 1061 permits a trial court to refuse to grant, in its discretion, declaratory relief "where its declaration or determination is not necessary or proper at the time under all the circumstances." (See also *C.J.L. Construction, Inc. v. Universal Plumbing* (1993) 18 Cal.App.4th 376, 389-390.) "A complaint for declaratory relief is legally

		sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties under a written instrument and requests that these rights and duties be adjudged by the court.” (<i>Maguire v. Hibernia Savings & Loan Soc.</i> (1944) 23 Cal.2d 719, 728.) Here, Ms. Smith’s request for declaratory relief is duplicative of and entirely coextensive with the second cause of action, which, as discussed previously, fails as a matter of law. (See <i>Stockton Citizens for Sensible Planning v. City of Stockton</i> (2012) 210 Cal.App.4th 1484, 1500 [declaratory relief derivative of barred claims fails as a matter of law]; <i>Roman v. BRE Properties, Inc.</i> (2015) 237 Cal.App.4th 1040, 1055, n. 12 [same].) Pacific Sands shall give notice of this ruling.
7	Nemmer vs. Renegade RV	Plaintiffs Richard Nemmar’s and Kathleen Nemmer’s motion for attorney’s fees, costs, and expenses is GRANTED in part and DENIED in part. The court awards Plaintiffs a total fees, costs, and expenses award of \$30,453.81, consisting of \$25,710 in attorney fees plus \$4,743.81 in costs, to be paid by Defendant Rev Renegade, LLC only. <u>Legal Standard for Attorney Fee Awards</u> On a motion for attorney’s fees, the moving party has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) The Song-Beverly Act provides for the recovery of attorney’s fees, costs, and expenses. (Civ. Code, § 1794(d).) Courts use the lodestar adjustment method to determine the amount of attorney’s fees to award in Song-Beverly actions. (<i>Reynolds v. Ford Motor Co.</i> (2020) 47 Cal.App.5th 1105, 1112.) “[T]he lodestar is the basic fee for comparable legal services in the community.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132.) It is “based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.’ [Citation.] [The California Supreme Court] expressly approved the use of prevailing hourly rates as a basis for the lodestar... In referring to ‘reasonable’ compensation, [the Court] indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation. (<i>Id.</i> at 1131-1132.) When determining a reasonable attorneys’ fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party’s attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 998; see also <i>Environmental Protection Info. Ctr. v. California Dep’t of Forestry & Fire</i>

Protection (2010) 190 Cal.App.4th 217, 248.) “The reasonable hourly rate is that prevailing in the community for similar work.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 437.)

The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier; “such an adjustment is commonly referred to as a ‘fee enhancement’ or ‘multiplier.’ [Citation.]” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 (“Mikhaeilpoor”).) The lodestar may be adjusted based on factors which include the novelty and difficulty of issues presented, complexity of the case, the attorney’s skills, the results achieved, and the extent to which taking the case on a contingent fee basis has precluded the attorney from taking other fee-generating work. (*Ketchum*, 24 Cal.4th at 1132-1134; *Mikhaeilpoor*, 48 Cal.App.5th at 247.) “The purpose of [the] adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (*Ketchum*, 24 Cal.4th at 1132.)

The court is not required to impose a multiplier; the decision is discretionary. (*Mikhaeilpoor*, 48 Cal.App.5th at 247; *Galbiso*, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.)

“‘[T]he lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation’ [Citation] and to determine the hourly rates that should be used in the lodestar calculus. [Citation.]” (*Mikhaeilpoor*, 48 Cal.App.5th at 246-247.) “The experienced trial judge is the best judge of the value of professional services rendered in his court . . . [Citation.]” (*Ketchum*, 24 Cal.4th at 1132.)

Here, it is undisputed that the Song-Beverly Act provides for the recovery of attorney’s fees and that Plaintiffs is the prevailing party. Plaintiffs incredibly request an award of request an order awarding \$172,972.56, in a straight forward lemon law case with no law and motion, no substantive motions, no expert discovery, one deposition, and no trial. This amount consists of (1) \$112,152.50 in attorney fees; (2) \$4,743.61 in costs, and (3) a 1.5 multiplier enhancement.

Lodestar Calculation: Reasonable Rates

This is a straightforward lemon law case that did not involve any challenges to the pleadings, any dispositive motions, any complex discovery issues, any expert discovery, or trial. Indeed, the docket on the

case establishes no law and motion matters. Defendant confirms that only one deposition was conducted. Yet, Plaintiff seeks nearly \$200,000 in fees, having staffed this simple case with four senior attorneys and seven paralegals with billing rates ranging from \$250/hr (for paralegals) to \$495-945/hr (for attorneys).

The court finds that 11 timekeepers on this case is not reasonable. The court finds the following reasoning to be particularly applicable here: “[T]he record demonstrates the highly inefficient manner in which plaintiff litigated her case.” (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 255.) “[D]espite counsel's experience litigating “hundreds of automotive defect cases involving California's consumer protection statutes, including Song-Beverly,” an astonishing array of 10 different attorneys litigated this case, with multiple attorneys staffed at different times. Further, counsel's billing entries demonstrate a lack of efficiency in litigating the case and a lack of clarity in tasks performed. This evidence supports the trial court's finding that plaintiff's counsel failed to act efficiently.” (*Id.* at 256.)

The court finds that the rates requested are unreasonable under the totality of the circumstances.

“[A] court reasonably could [] reduce[] rates based on its finding that the matter was not complex; that it did not go to trial; that the name partners were doing work that could have been done by lower-billing attorneys; and that all the attorneys were doing work that could have been done by paralegals.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

Here, the court finds that, after reviewing the billing records, the tasks performed were not complex and there were no complicated law and motion matters (e.g., no demurrers, no motions for summary adjudication/judgment). The discovery that was performed was not complicated and did not include having to prepare for or take any depositions. There was no expert discovery performed. Further, this action did not go to trial or require Plaintiffs’ counsel to prepare trial related papers. Such work could have been done by lower-billing attorneys and/or by paralegals rather than senior attorneys billing \$745 to \$945/hr.

As for attorney rates, the court finds that the hourly rates sought here for this work is unreasonably excessive for the type of work performed on routine, non-complex, boilerplate lemon law discovery. (*See Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 250 (reduction of rates is proper when trial attorney spent time on tasks that “should not have required anything more than [a] slight factual modification to [an] existing boilerplate.”)) Based on the straightforward issues raised in this case, that no particularly complicated law and motion matters arose, and that most tasks were routine and/or required a slight

modification from existing form discovery, the court finds that a reasonable hourly blended rate is \$300 per hour in this case.

Lodestar Calculation: Reasonable Hours

Plaintiffs seek to recover for 195.7 hours of work. Defendant primarily objects to two categories of billings—137.90 hours were billed to interoffice and/or client communications and 48.2 hours were billed to written discovery that Defendant contends were boilerplate.

Having reviewed the record in this case and Plaintiffs' billing records, the court finds that Plaintiffs' request is unreasonable on its face. In such a case, the court has discretion to reduce or deny altogether a fee request that appears to be unreasonably inflated. (*Serrano, supra*, 32 Cal. 3d at 635; *see e.g., Morris v. Hyundai* (2019) 41 Cal. App. 5th 24, 28 (trial court may properly reduce fee request by 61%).)

Using this court's own expertise and considering the straightforward nature of the litigation, its lack of difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case, the court finds that it is reasonable to reduce communication related entries by 95 hours and written discovery entries by 10 hours. (See, e.g., *PLCM Group, Inc.*, 22 Cal.4th at 1096 for the court's authority to determine the reasonable fees based on its own expertise).

The court, therefore, finds that 85.7 hours of work is reasonable and recoverable (195.7 hours requested – (95+10 hours reduced)).

Lodestar Calculation: Multiplier

In determining whether to apply a multiplier, the court considers a variety of factors that the court did not consider based when determining the lodestar figure, such as the novelty and difficulty of the issues presented, the skill displayed in presenting them, the extent to which the nature of the litigation precluded other employment by the attorneys, and the contingent nature of the fee award. (*See Ketchum*, 24 Cal.4th at 1132-1134; *Northwest Energetic Servs., LLC v. California Franchise Tax Bd.* (2008) 159 Cal.App.4th 841, 879-82; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.) The court is not required to impose a multiplier; the decision is discretionary. (*Galbiso*, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.)

Here, the declines to award a 1.5 lodestar multiplier. The case is not so novel or difficult and the results recovery is not so outstanding to warrant such a multiplier.

Costs Claim

		Prejudgment costs must be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc., § 1034(a).) Here, Plaintiffs have failed to file a memorandum of costs. However, by the parties' settlement, the parties agreed that Plaintiffs need not file a cost memorandum to recover costs. Here, Defendant does not object to any of Plaintiffs' cost items. As such, the court will allow Plaintiffs to recover the \$4,743.81 in costs. <u>Joinder</u> Defendant Lipper Components, Inc. filed a joinder in Defendant Renegade RV's opposition to Plaintiffs' motion for attorney's fees and costs. (ROA #56). The notice of motion, however, seeks an "Order Awarding Attorney's Fees, Costs, and Expenses to Plaintiffs to be Paid by Defendant REV Renegade, LLC." (ROA # 48 at pg. ii:1-2). As such, Plaintiffs are not seeking any relief against Defendant Lippert Components, Inc. The joinder is DENIED on this basis. <u>Summary of Total Award</u> Based on the court's findings above, the court awards Plaintiffs total fees award of \$25,710 (\$300/hr x 87.5 hrs) and a total costs award of \$4,743.81. The court, therefore, awards Plaintiffs a total fees, costs, and expenses award of \$30,453.81 to be paid by Defendant REV Renegade, LLC, only. Plaintiffs to give notice.
8	Doe vs. Crossline Community Church	Plaintiff, an individual moves the court to proceed under pseudonym. Plaintiff's motion is GRANTED. "The names of all parties to a civil action must be included in the complaint. (Code Civ. Proc., § 422.40.)" (<i>Dep't of Fair Employment & Housing. v. Superior Ct. of Santa Clara Cnty.</i> (2022) 82 Cal.App.5th 105, 109.) However, "[b]ecause of the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties' identities confidential. . . Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest." (<i>Id.</i> at p. 110.) "Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court

		finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public’s right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur ‘only in the rarest of circumstances.’ [Citation.]” (<i>Dep’t of Fair Employment & Housing, supra</i>, 82 Cal.App.5th at 111–12 (footnote omitted.).) The <i>Dep’t of Fair Employment & Housing</i> court recognized <i>Does I thru XXIII v. Advanced Textile Corp.</i> (9th Cir. 2000) 214 F.3d 1058, 1067 (<i>Advanced Textile</i>) as “setting out factors courts should consider in response to a party’s request for anonymity.” (<i>Dep’t of Fair Employment & Housing, supra</i>, 82 Cal.App.5th at 112.) Specifically, <i>Advanced Textile</i> states courts “have permitted plaintiffs to use pseudonyms in three situations: (1) when identification creates a risk of retaliatory physical or mental harm [citations]; (2) when anonymity is necessary ‘to preserve privacy in a matter of sensitive and highly personal nature,’ [citations]; and (3) when the anonymous party is ‘compelled to admit [his or her] intention to engage in illegal conduct, thereby risking criminal prosecution,’ [citations].” (<i>Advanced Textile, supra</i>, 214 F.3d 1058, 1068.) In <i>Poway Unified School Dist. V. Superior Court</i> (1998) 62 Cal.App.4th 1496, the court held: Balanced against the public's right to know is the victim's right to privacy. (See Welf. & Inst.Code, § 676, subd. (b) [barring the public from juvenile court hearings, even on serious crimes, upon request of the victim]; Pen.Code, § 293.5 [analogous protections in criminal proceedings]; § 6254, subd. (f)(2) [allowing a state or local agency compiling law enforcement records to withhold the name of a minor victim of enumerated crimes at the request of his parent]; and § 54961, subd. (b) [Brown Act exception to disclosure requirements in sex crime cases].) <i>People v. Ramirez</i> (1997) 55 Cal.App.4th 47, 64 Cal.Rptr.2d 9, eloquently articulated the privacy concern for these types of crimes: “There can be little dispute that the state's interest in protecting the privacy of sex offense victims is extremely strong and fully justified. ‘No *1502 crime is more horribly invasive or more brutally intimate than rape.’ [Citation.]” (Id. at p. 53, 64 Cal.Rptr.2d 9.) “ ‘Privacy’ is not an insignificant interest — it is described in our state Constitution as one of our ‘inalienable rights.’ (Cal. Const., art. I, § 1.) In the context of the victim of a sex offense,
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		our Legislature ... has likewise determined that the privacy interest of such a victim is significant.... [M]any victims are reluctant to report sex offenses ‘because of fear they will be publicly identified and humiliated.’ [Citation.]” (Id. at p. 56, 64 Cal.Rptr.2d 9.) Plaintiff alleged in her Complaint that she was a minor child attending Crossline with her family in or around 2006. (Compl., ¶ 10). Crossline hired an employee, Mr. Hart, as its Production, Web, and Media Director, despite his prior voyeurism conviction and admitted sexual addiction. (Compl., ¶¶ 20). Around 2012 or 2013, Jane Doe needed a new computer to start the school year. Mr. Hart offered Jane Doe’s family a refurbished computer from him. (Compl., ¶ 30). In June 2025, Federal investigators determined that Mr. Hart installed software enabling remote access and monitoring of the device he had given Jane Doe. (Compl., ¶ 33). On June 21, 2025, Mr. Hart was detained at Miami International Airport after arriving from Haiti, returning from a mission trip. A search of his devices by U.S. Customs and Border Protection revealed thirty-three (33) videos of child sexual abuse material and approximately 160 AI-generated sexual images of minors. (Compl., ¶ 35). After Mr. Hart’s arrest on federal charges, Homeland Security conducted additional searches of his devices and, on October 8, 2025, notified Jane Doe’s family that seven videos of Jane Doe had been recovered. These included nude videos of her getting in and out of the shower and in her room in the nude. Investigators stated Mr. Hart deleted other content but retained material that served his purposes and confirmed Jane Doe’s images were stored for his own sexual exploitation and gratification. (Compl., ¶ 36). Plaintiff’s Contentions: Plaintiff contends that because she was a minor and was subjected to sexual exploitation and nude video recordings, she has expressed fear that public disclosure of her legal name in connection with this action would increase the likelihood of dissemination and cause additional emotional harm. Defendants Contentions: Defendant contends the sensitive nature of the allegations which has already been addressed by the terms of the Protective Order. (See ROA 70). Defendant contends that it is prejudiced and the public has the right to know who is making accusations against a church for conduct committed by a non-party criminal. Defendant also contends that Plaintiff herself has not submitted a declaration and, therefore, has not provided admissible evidence.
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9	Adjemian vs. Gallo	Defendant John Mussen's motion to compel answers to special interrogatories is DENIED. Moving party shall provide notice.
10	Diversified Search Group vs. Invo Technologies LLC.	Plaintiff Diversified Search Group, Inc.'s motion for leave to file a second amended complaint is GRANTED. The court sets an OSC re service of second amended complaint on defendants or dismissal on October 08, 2026, at 09:00 am in Department C10. Leave to amend should be granted liberally to accomplish substantial justice for both parties. (Code Civ. Proc., § 473, subd. (a); <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489 ("<i>Hirsa</i>").) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend...." (<i>Morgan v. Sup. Ct.</i> (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) "The power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant." (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) "Allowing the filing of [] an amendment is in furtherance of justice and in keeping with the fundamental policy of our courts that cases should be decided on their merits." (<i>Hirsa, supra</i>, at p.490.) It is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper;

		(3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. Here, Plaintiff has substantially complied with the requirements for leave to amend under Rule 3.1324. Plaintiff seeks leave to amend to add new defendants and to add a cause of action to hold successor entities liable for the debts of the original defendants. Plaintiff contends that Plaintiff discovered additional facts that the Invoy Technologies is a forfeited by the California FTB. As such, Plaintiff seeks to hold its successor liable. Plaintiff argues that, at this time, the case is not at issue and the defendants have not been served such that granting relief will not cause prejudice. Given the liberal policy to allow amendments, and given that no prejudice will occur, the motion is GRANTED. Plaintiff is ordered to file the second amended complaint, attached as Exhibit1 of the motion, within 5 days of this order. The court notes that this case was initiated on October 2, 2025. To avoid any further delay, the court sets an OSC re service of second amended complaint on defendants or dismissal on October 8, 2026. The Case Management Conference is continued to October 08, 2026, at 09:00 am in Department C10. Moving party shall provide notice.
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